



2026:AHC:175077-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 7901 of 2012

M/S Janki News Print Ltd. And Another

.....Petitioner(s)

Versus

Pashchimanchal Vidyut Vitran Nitam Ltd. And
Others

.....Respondent(s)

Counsel for Petitioner(s) : Mayank Agrawal

Counsel for Respondent(s) : Kartikeya Saran, A.N. Singh, Ajay
Singh, Pankaj Kumar Shukla

Court No. - 40

HON'BLE SARAL SRIVASTAVA, J.

HON'BLE SUDHANSHU CHAUHAN, J.

1. Heard learned counsel for the petitioner.

2. The petitioner by means of the present writ petition has prayed for the following relief:-

"i. Issue a writ, order or direction in the nature of mandamus directing respondent nos.1 and 2 to refund an amount of Rs.36,82,000/- along with interest @12% p.a. realized from the petitioner by way of system loading charges.

ii. Issue a writ, order or direction in the nature of mandamus directing the respondent no.1 to compensate/restitute for loss or damage caused to him on account of such illegal realization by way of paying interest on the aforesaid amount @ 18% p.a.

iii. Issue a writ, order or direction in the nature of mandamus declaring that Clauses 4.6(h)(i) and 4.21(a) of the U.P. Electricity Supply Code, 2005 in so far it pertains to system loading charges as ultra-vires and illegal being un-constitutional and hit by the provisions of Section 42(1), 43 and 46 of the Electricity Act, 2003 read with Clause 4.2 of the Electricity Supply Code, 2005.

iv. Issue any other writ, order or direction which this Hon'ble Court may deem fit and proper in the facts and circumstances of the present case.

v. Award the cost of the petition to the petitioner."

3. Identical writ petition i.e. Writ-C No.67768 of 2009 has been dismissed

by this Court by judgement and order dated 05.01.2026 on the ground of alternative remedy.

4. Accordingly, we also ***dismiss*** the present writ petition on the ground of alternative remedy.

5. We further provide that if petitioner prefers appeal under Section 111 of the Electricity Act, 2003 before the Appellate Authority within a period of one month from today, the Appellate Authority shall decide the same on merit without entering into the question of limitation

August 19, 2026
Sattiyarth

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)